

**SUBSTITUTE FOR
HOUSE JOINT RESOLUTION U**

A joint resolution proposing an amendment to the state constitution of 1963, by amending section 5 of article VIII, to provide for gubernatorial appointment of the members of the governing boards of the University of Michigan, Michigan State University, and Wayne State University.

Resolved by the Senate and House of Representatives of the state of Michigan, That the following amendment to the state constitution of 1963, to provide for gubernatorial appointment of the members of the governing boards of the University of Michigan, Michigan State University, and Wayne State University, is proposed, agreed to, and submitted to the people of the state:

ARTICLE VIII

Sec. 5. **(1)** The regents of the University of Michigan and their successors in office shall constitute a body corporate known



1 as the Regents of the University of Michigan; the trustees of
 2 Michigan State University and their successors in office shall
 3 constitute a body corporate known as the Board of Trustees of
 4 Michigan State University; the governors of Wayne State University
 5 and their successors in office shall constitute a body corporate
 6 known as the Board of Governors of Wayne State University. Each
 7 board shall have general supervision of its institution and the
 8 control and direction of all expenditures from the institution's
 9 funds. Each board shall, as often as necessary, elect a president
 10 of the institution under its supervision. ~~He~~**The president** shall be
 11 the principal executive officer of the institution, be ex-officio a
 12 member of the board without the right to vote, and preside at
 13 meetings of the board.

14 **(2) ~~The~~ Until December 30, 2026, the** board of each institution
 15 shall consist of eight members who shall hold office for terms of
 16 eight years and who shall be elected as provided by law, ~~—The~~**and**
 17 **the** governor shall fill board vacancies by appointment. Each
 18 ~~appointee shall hold office until a successor has been nominated~~
 19 ~~and elected as provided by law.~~**member of a board under this**
 20 **subsection is discharged on December 30, 2026.**

21 **(3) Beginning December 31, 2026, the board of each institution**
 22 **includes nine members, with four members from each of the major**
 23 **political parties, and with one member who does not affiliate with**
 24 **either of the major political parties and who is appointed by and**
 25 **serves at the pleasure of the governor. The four members from each**
 26 **of the major political parties must be nominated by an individual**
 27 **affiliated with that major political party as described in**
 28 **subdivisions (a) to (e). Except as provided in subsections (4),**
 29 **(5), (6), and (7), the remaining eight members on the board of each**



1 institution shall serve one full term of office of eight years and
2 be appointed by the governor from lists of nominees for each board
3 provided as follows:

4 (a) Three nominees provided by the speaker of the house of
5 representatives.

6 (b) Three nominees provided by the house minority leader.

7 (c) Three nominees provided by the senate majority leader.

8 (d) Three nominees provided by the senate minority leader.

9 (e) Three nominees provided by the chairperson of each of the
10 major political parties.

11 (4) The eight members of each board first appointed from the
12 lists of nominees provided by the speaker of the house of
13 representatives, the house minority leader, the senate majority
14 leader, the senate minority leader, and the chairpersons of each of
15 the major political parties shall serve terms of office as provided
16 in subsection (6), with each staggered term including one member
17 from each major political party.

18 (5) If a vacancy occurs on a board, the governor shall appoint
19 from lists of nominees as described in subsection (3) an individual
20 from the same major political party as the member who created the
21 vacancy for the remainder of the unexpired term. A member appointed
22 to fill a vacancy who serves less than four full years is eligible
23 for appointment to one full eight-year term.

24 (6) All of the following apply only to the first members
25 appointed to each board after December 30, 2026:

26 (a) Two must be appointed for terms ending December 31, 2028.

27 (b) Two must be appointed for terms ending December 31, 2030.

28 (c) Two must be appointed for terms ending December 31, 2032.

29 (d) Two must be appointed for terms ending December 31, 2034.



1 (7) The governor with a term expiring on January 1, 2027 shall
2 appoint one board member under subsection (6) (a) , one board member
3 under subsection (6) (b) , one board member under subsection (6) (c) ,
4 and one board member under subsection (6) (d) . The governor with a
5 term beginning on January 1, 2027 shall appoint the remaining four
6 board members under subsection (6) (a) to (d) , and shall appoint the
7 board member who does not affiliate with either of the major
8 political parties, as provided in subsection (3) .

9 (8) The board members of each institution described in this
10 section shall comply with all of the following:

11 (a) State ethics laws.

12 (b) State open meetings laws.

13 (c) State freedom of information laws.

14 (9) As used in this section, "major political parties" means
15 the two political parties with the largest representation in the
16 legislature.

17 Resolved further, That the foregoing amendment shall be
18 submitted to the people of the state at a special election to be
19 held August 4, 2026 in the manner provided by law.

20 Resolved further, That it is the intent of the legislature
21 that when submitted to the people of the state at a special
22 election to be held August 4, 2026, this amendment must be
23 presented with the following question:

24 "A PROPOSAL TO CREATE NEW GOVERNING BOARDS FOR UNIVERSITY OF
25 MICHIGAN, MICHIGAN STATE UNIVERSITY, AND WAYNE STATE UNIVERSITY.

26 The proposed constitutional amendment would:

27 - Create new term limited 9-member boards to replace current
28 8-member boards for the University of Michigan, Michigan State
29 University, and Wayne State University, bringing members under



1 state ethics laws, state open meetings laws, and state freedom of
2 information laws.

3 - Have the current governor appoint 4 new board members for
4 each university and the new governor elected on November 3, 2026
5 appoint the remaining board members.

6 Should this proposal be adopted?

7 Yes []

8 No []".